

HOUSE No. 4633

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 23, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1608) of Tackey Chan relative to restraining orders as they pertain to hate crimes, reports recommending that the accompanying bill (House, No. 4633) ought to pass.

For the committee,

MICHAEL S. DAY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to restraining orders as they pertain to hate crimes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 258E of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the definitions of “Abuse”, “Harassment” and
3 “Court” and inserting in place thereof the following 2 definitions:-

4 “Court”, the superior, probate and family, district or Boston municipal court departments
5 of the trial court.

6 “Harassment”, (i) 3 or more acts of willful and malicious conduct aimed at a specific
7 person committed with the intent to cause fear, intimidation, abuse or damage to property and
8 that does in fact cause fear, intimidation, abuse or damage to property; (ii) 3 or more acts using
9 force or the threat of force to injure, intimidate or threaten another person on the basis of race,
10 color, religion, national origin, sex, sexual orientation, gender identity or disability; or (iii) an act
11 that : (A) by force, threat or duress causes another to involuntarily engage in sexual relations.; or
12 (B) constitutes a violation of section 13B, 13F, 13H, 22, 22A, 22D, 23, 24, 24B, 26C, 37, 39, 43
13 or 43A of chapter 265 or section 3 of chapter 272.

SECTION 2. Section 39 of chapter 265 of the General Laws, as so appearing, is hereby amended by striking out the first sentence, as amended by section 109 of chapter 135 of the acts of 2024, and inserting in place thereof the following sentence:- (a) Whoever commits an assault or a battery upon a person or damages the real or personal property of a person with the intent to intimidate such person because of the race, color, religion, national origin, sexual orientation, gender identity, or disability of the person or their immediate family member, shall be punished by a fine of not more than \$5,000 dollars or by imprisonment in a house of correction for not more than 2 ½ years, or by both such fine and imprisonment.

SECTION 3. Said section 39 of chapter 265 is hereby further amended by inserting after the third sentence, as amended by section 109 of chapter 135 of the acts of 2024, the following sentence: - For the purposes of this section, the term “immediate family member” shall mean a spouse, child, step-child, adopted child, sibling, step-sibling, adopted sibling, parent, step-parent, legal guardian, adoptive parent, grandparent or grandchild.